

Court No. - 29

Case :- WRIT - C No. - 7304 of 2016

Petitioner :- Harpreet Singh Bedi

Respondent :- U.P.P.C.L. And 2 Others

Counsel for Petitioner :- Arvind Kumar Singh

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

Petitioner (Harpreet Singh Bedi) is before this Court and his submission is that he has applied for fresh electricity connection and on the said application in question totally unreasonable condition has been imposed for getting no objection from the co-sharers.

Submission is being made before this Court that under paragraph No. 4.4 of U.P. Electricity Supply Code, 2005 such condition for insisting upon production of no objection certificate is applicable vis-a-vis tenant of the property in question but in the matter wherein there are several co-sharers same is not at all required.

Petitioner in this background contends that the condition that has been insisted is per se in the teeth of U.P. Electricity Supply Code, 2005.

Sri Ashish Kumar Gupta, Advocate holding brief of Sri Pranjal Mehrotra, Advocate submits before this Court that the issue that is being raised before this Court would be revisited by the Executive Engineer, Division Gajraula, District Amroha.

Consequently, in the facts of the case, we give liberty to the petitioner to represent his claim before the Executive Engineer, Division Gajraula, District Amroha. In case such representation is being moved, we hope and trust that the Executive Engineer, Division Gajraula, District Amroha would take appropriate decision on the claim of the petitioner in accordance with parameters of U.P. Electricity Supply Code, 2005 preferably within next two months from the date of receipt of certified copy of this order.

Writ petition is **disposed of** accordingly.

Order Date :- 23.2.2016

Jaswant